

Tentative Rulings for August 26, 2026

Department 1

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 638 4172**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2601008	BARONE vs RANCHO MIRAGE SURGERY CENTER	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Deny as moot in light of the tentative ruling on the intentional fraud cause of action.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2601008	BARONE vs RANCHO MIRAGE SURGERY CENTER	DEMURRER ON COMPLAINT

Tentative Ruling:

Grant Boston Scientific's request for judicial notice of requests 1, 2 and 5; deny as to requests 3, 4 and 5. Exhibits 3 and 4 are not documents prepared by the FDA, but by Boston Scientific. Although Boston Scientific contends that they were approved by the FDA, there is no evidence to support that assertion. Exhibits 1 and 2 are official documents from the federal government and are properly the subject of judicial notice. Exhibit 5 is the warranty referenced by plaintiffs in the complaint (§ 110).

Boston Scientific argues that plaintiffs failed to sufficiently allege that their claims fit the "narrow gap" through which a state law claim must fit to avoid preemption. The distinction between the cases cited by the parties appears to be that allegations of specific federal requirements applicable to the particular medical device at issue are sufficient but that allegations relating only to the cGMPs, which are purposefully broad to apply to a range of medical devices and are intentionally vague and open-ended, cannot serve as the basis for a parallel claim. *Cf. Ilaraza v. Medtronic, Inc.* (2009) 677 F.Supp.2d 582, 588 (discussing cGMPs) and *Mize v. Mentor Worldwide LLC* (2020) 51 Cal.App.5th 850 (not based on allegations concerning cGMPs, but on failure to comply with IDE requirements specific to the product involved). Sustain the demurer to the 1st cause of action, 20 days' leave to amend.

Overrule as to the 2nd, 3rd, 5th, 6th and 8th causes of action.

Sustain as to the 4th cause of action with 20 days' leave to amend.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2403706	LUNA vs 20/20 MOBILE CORP	HEARING ON FINAL APPROVAL

Tentative Ruling:

Grant; appearance requested to discuss date for review of administrator's report (order, ¶ 26).

4.

CASE #	CASE NAME	HEARING NAME
CVRI2406953	BYLER vs MASTEC SERVICES COMPANY	MOTION FOR LEAVE TO AMEND COMPLAINT

Tentative Ruling:

Appearances requested to discuss whether the Court should receive the evidence/RJN filed with the reply papers and if so what opportunity defendant should have to respond.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2504272	DEJESUS vs DR. JAVIER RIOS, A MEDICAL CORPORATION	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Appearances requested.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2505885	DEJESUS vs DR. JAVIER RIOS, A MEDICAL CORPORATION	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Appearances requested.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2601509	PARKER vs J CHOO USA, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Grant; arbitration agreement clearly and unmistakably delegates the unconscionability defense to the arbitrator. Stay non-individual PAGA claim pending completion of arbitration proceedings.